

SPR097646 Matter of Stephen F. McLaughlin Trust

County: sonoma

Division: Probate

Hearing date: 2027-01-08

Motion: Petition for Orders: (1) Redressing Breaches of Trust and Damages and Attorney's Fees; (2) Setting Aside and Cancelling Deed of Trust and Assignment of Rent; (3) Instructing Trustee to Preserve Trust Property and Enjoining Trustee from Encumbering or Depleting Trust Principal without Court Order; (4) Compelling Trustee to Provide Information and an Accounting; and (5) Prohibiting Trustee from Using Trust Funds for Litigation

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Tentative Ruling: The matter is CONTINUED to Friday, January 15, 2027 at 9:30 a.m. in Department 63 for the reasons set forth below.

On September 10, 2026, respondent filed objections to evidence and objections to the Petition. As this is a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2.F.2 and file statements of issues in compliance with local rule 6.2.F.3 at least seven (7) court days in advance of the continued hearing.

Any request to prevent the respondent from using trust and estate assets to defend this action must be by noticed motion. Any request to enjoin Trustee's actions, such as from encumbering or depleting Trust principal, must be made by noticed motion. Any request for attorney's fees must be by noticed motion and include the authority for an award, as well as support for the amount requested. Lastly, as to the damages/surcharge requested in the petition, evidence will need to be presented to this Court before a decision can be rendered. Therefore, the matter is CONTINUED to Friday, January 15, 2027 at 9:30 a.m. in Department 63. The dual purpose of the continuance is to allow the petitioners time to prepare to present written evidence to the Court and respondent regarding the amount of any damages/surcharge claimed. Unless the petitioners need and request more time, the petitioners should file and serve written evidence supporting the damages sought at least 10 days before the hearing. In the absence of any objection, the Court may decide the question based solely on the written evidence submitted. However, if there is an objection, or if the Court determines it requires live testimony, it may set an evidentiary hearing.